



केन्द्रीय प्रदूषण नियंत्रण बोर्ड
CENTRAL POLLUTION CONTROL BOARD
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय भारत सरकार
MINISTRY OF ENVIRONMENT FOREST & CLIMATE CHANGE GOVT OF INDIA

F. No. CP-20/33/2021-UPC-II-HO-CPCB-HO

Date: 10-08-2023

To,

The Chairperson,
All SPCBs/PCCs

Subject: Issues related to implementation of EPR Guidelines for Plastic Packaging & Ban on SUP items-reg

Sir,

Please find enclosed herewith copies of OM's, dated 06.01.2023, 03.02.2023 issued by MoEFCC to CPCB on the subject for information and further necessary action. These OM's have also been examined by CPCB based on which the gist of the directions of the Ministry are being re-iterated to facilitate the implementation of EPR guidelines for plastic packaging and Ban on SUP items:

1.0 Registration requirement of Micro and Small Brand Owners and Producers

Micro and Small Brand Owners (BO) are exempted from EPR obligations under clause 4 (iii) of EPR Guidelines, and are not required to register on Centralized EPR portal developed by CPCB. However, Micro and Small producers who manufacture plastic packaging are covered under EPR obligations and need to register on the Portal.

2.0 Restriction on Transactions with Obligated Entities

Clause 6.3 of EPR Guidelines states that the entities covered under clause (6.1) shall not deal with any entity not registered on EPR portal. It is clarified in the MoEFCC's O.M that such restriction on transaction is applicable to only those entities which are obligated under EPR Guidelines and NOT to other stakeholders in the supply chain such as traders and user industry. Necessary changes to this effect have been made in registration certificates issued on the Portal.

3.0 Plastic Waste Processors processing "Non-packaging Plastic Waste"

Plastic Waste Processors (PWPs) who process "non-packaging plastic waste" and NOT the "plastic packaging waste" are not required to register on the Portal. However, such PWPs which process mixed waste (packaging and non-packaging both) will have to register on the Portal and provide the

O/C

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information/data separately for packaging and non-packaging waste as per the prescribed format.

4.0 Assessment of EPR Target for MLP Packaging

EPR target for Multi-Layer Packaging (MLP) will be on the basis of total weight of MLP and NOT on the weight of plastic content.

5.0 Applicability of restriction on thickness of Plastic Sheets

As per Rule 4 (1) (d) of PWM Rules 2016, "*Plastic sheet or like, which is not an integral part of multi layered packaging (MLP) and cover made of plastic sheet used for packaging, wrapping the commodity shall not be less than fifty microns in thickness except as specified by the Central Government where the thickness of such plastic sheets impair the functionality of the product*". Central Government shall grant such exemptions on recommendations of CPCB.

Restriction of 50 microns thickness as per Rule 4 (1) (d) of PWM Rules 2016 is not applicable to plastic sheet which is an integral part of MLP.

Yours faithfully,

(Prashant Gargava)
Member Secretary

O/C

File No. 17/6/2021-HSMD
Government of India
Ministry of Environment, Forest and Climate Change
(HSM Division)

Level-VI, Jal Block,
Indira Paryavaran Bhawan
Jor Bagh Road, Ali Ganj,
New Delhi-110003

Dated: 6th January, 2023

OFFICE MEMORANDUM

Subject: Guidelines on Extend Producer Responsibility for Plastic Packaging-Regarding.

1. The Guidelines on Extended Producer Responsibility (EPR) for Plastic Packaging (hereinafter referred as “EPR Guidelines”) were notified in the Gazette of India vide Plastic Waste Management (Amendment) Rules, 2022, on 16th February, 2022. The Producers, Importers and Brand Owners are mandated to fulfill Extended Producer Responsibility for plastic packaging, under Rule 9 (1), of the Plastic Waste Management Rules, 2016, as amended, as per EPR Guidelines, given in Schedule II of the rules.

2. Accordingly, EPR Guidelines need to be followed for implementation of EPR obligations. Requests for clarifications have been received on the EPR Guidelines specifically with respect to clause 4 and clause 6 of the guidelines. The following clarifications are provided with respect EPR Guidelines:

Producer (P), Importer (I) and Brand Owners (BO) – PIBO

(i) The obligated entities covered under Extended Producer Responsibility obligations and provisions of EPR Guidelines given in clause 4 of the guidelines. The same is quoted below:

“4. Obligated Entities:

The following entities shall be covered under the Extended Producer Responsibility obligations and provisions of these guidelines namely: -

- (i) Producer (P) of plastic packaging;*
- (ii) Importer (I) of all imported plastic packaging and / or plastic packaging of imported products;*
- (iii) Brand Owners (BO) including online platforms/marketplaces and supermarkets/retail chains other than those, which are micro and small enterprises as per the criteria of Ministry of Micro, Small and Medium Enterprises, Government of India.;*
- (iv) Plastic Waste Processors.”*

It is to be noted from clause 4 of EPR Guidelines quoted above, Producer (P) is of plastic packaging. This is distinct from Brand Owners which are defined under the Rules 3 (b) as quoted below:

“(b) “brand owner” means a person or company who sells any commodity under a registered brand label or trademark.”

For reference, the terms “commodity” and “plastic packaging” are also defined under Rule 3, as quoted below:

“(d) “commodity” means tangible item that may be bought or sold and includes all marketable goods or wares;

(oa) Plastic Packaging means packaging material made by using plastics for protecting, preserving, storing, and transporting of products in a variety of ways;”

(ii) The obligated entities mandated for registration on the centralized EPR portal developed by CPCB, as per clause 6 of EPR Guidelines, are defined in clause 4 of the EPR Guidelines quoted above. As such, any interpretation related to registration on centralized EPR portal need to be read in alignment with clause 4 of EPR guidelines only. For clarity, Micro and Small Brand Owners (BO) exempted under clause 4 of EPR Guidelines, and do not manufacture plastic packaging as defined under the rules, are not required to be registered on the Centralized EPR portal, as Producer (P) of plastic packaging, as per EPR Guidelines.

(iii) Clause 4(iii) of the EPR Guidelines exempts micro and small Brand Owners (quoted above), from EPR obligations and provisions of EPR guidelines. Therefore, clause 6.3 of EPR Guidelines is not applicable on micro and small brand owners.

Plastic Waste Processors (PWPs)

(iv) The restriction under clause 6.3 of EPR Guidelines relates to dealing with obligated entities under the Guidelines only and does not cover the value chain of other types of plastic waste. The general condition mentioned in their registration certificate, restricting PWPs to undertake business with only entities registered on centralized EPR portal, needs to be suitably amended to reflect the correct factual position. CPCB is requested to instruct all SPCBs/PCCs, accordingly.

(v) CPCB is requested to further disseminate the above clarifications given in paragraphs 2 (i) to 2 (iv) with all State Pollution Control Boards/Pollution Control Committees for immediate compliance.

3. The CPCB is also requested to incorporate the following changes on the Centralized EPR portal on most immediate priority

PIBOs

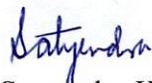
(i) In order to allow for maximum enterprises to register and come under ambit of EPR, self-declaration of enterprise based upon audited statement of accounts may be used as for determination of EPR target while registering on centralized EPR portal. Detailed invoices for last two years may be verified, wherever required, on need basis, as part of auditing exercise.

PWPs

(ii) An option is to be provided for filling information on the quantum of plastic packaging waste recycled and recycling of other plastics by PWPs on the centralized EPR portal.

(iii) An option of "Others" is to be provided to such PWPs who do not deal with plastic packaging waste. CPCB may also provide the option, to already registered PWPs / recyclers to edit their existing option in order to reflect correctly the kind of plastic waste or plastic packaging waste being recycled or processed by them.

This issues with the approval of Secretary, EFCC.


(Dr. Satyendra Kumar)
Director
011-20819291
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To,

The Chairman,
Central Pollution Control Board,
Parivesh Bhawan, East Arjun Nagar,
Delhi- 110032
Email - ccb.cpcb@nic.in

Copy to

Industry associations as per list

Copy for kind information:

1. PPS to Secretary (EF&CC)
2. PPS to AS(NPG)

List of Association

- All India President, Laghu Udyog Bharati

Association from Uttarakhand

- Sidcul Manufacturers Association Uttarakhand,
- Industries Association of Uttarakhand
- Kumaun Garhwal Chamber Of Commerce & Industry
- Bhagwanpur Industries Association
- Association of Pharmaceutical Manufacturers.
- Food Industries Association of Uttarakhand.
- Roorkee Small Scale Industries Association.
- Drugs Manufacturer Association of Uttarakhand.
- Indian Industries Association.

F. No. HSM-17/1/2023-HSM
Government of India
Ministry of Environment, Forest and Climate Change
Hazardous Substances Management Division

6th floor, Jal wing
Indira Paryavaran Bhawan
Jor Bagh Road, New Delhi – 110 003

Date: 3rd February 2023

OFFICE MEMORANDUM

Subject: Applicability of thickness restriction on shrink film, cling film, stretch film- under Plastic Waste Management Rules, 2016, as amended- Reg.

This has reference to applicability of thickness restriction on shrink film, cling film and stretch film under Plastic Waste Management Rules, 2016, as amended. Rule 4 (d) of the Plastic Waste Management Rules, 2016, as amended, stipulate restriction on thickness of plastic sheet or like or cover made of plastic sheet.

2. The following is clarified:

- (i) The use of plastic sheet or like, which is not part of multi-layered packaging and cover made of plastic sheet used for packaging, wrapping the commodity shall not be less than 50 microns in thickness, in an independent manner, inter-alia including shrink film, cling film and stretch film, which shall not have thickness less than 50 microns, until an exemption is specified, by the Central Government, based upon recommendation on CPCB, that the thickness of such plastic sheets impair the functionality of the product,
- (ii) Further, as per rules, only in cases where, plastic sheet or like, is integral part of multi layer packaging (made from different materials or made from different type of plastics) the thickness restriction shall not apply. However, in such cases, the use of plastic sheet has to be accounted for in production of plastic packaging, through EPR registration of producers of plastic packaging/converters, as EPR Guidelines.
- (iii) As EPR target is on weight basis, while registering for EPR of multilayered plastic packaging, in which plastic sheet or like, is a part, the complete weight of multilayered plastic packaging will covered under EPR.

3. It is requested that the above information is shared with all SPCBs/PCCs.
4. This issues with the approval of Competent Authority.

Yours faithfully,


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Director, HSMD
Ph: 20819291

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To,
The Chairman, Central Pollution Control Board,
Parivesh Bhawan, CBD-cum-Office,
East Arjun Nagar, New Delhi- 110 032

Copy for kind information:

1. PPS to Secretary, EFCC
2. PPS to AS (NPG)